

3COM USA CLOUD VIDEO STORAGE SERVICE AGREEMENT

Effective Date	July 15, 2026
Contracting Entity	3COM USA INC
Primary Hosting / Storage	AWS
Governing Law	California, United States

This Cloud Video Storage Service Agreement (“Agreement”) is entered into by and between 3COM USA INC, a California corporation with its principal place of business at 2200 Laurelwood Rd, Santa Clara, CA 95054 (“Company,” “we,” “us,” or “our”), and the person or entity that purchases, activates, accesses, or uses the Service (“Customer,” “you,” or “your”).

This Agreement governs the purchase and use of a cloud-based video storage service made available through the Company’s application, platform, websites, and supported monitoring devices. By clicking to accept, placing an order, enabling the Service, or otherwise accessing or using the Service, you agree to be bound by this Agreement.

1. Definitions

“Account” means your registered user account through which the Service is purchased, activated, managed, and used.

“App” means the Company mobile or web application designated by the Company for administration of the Service.

“Device” means a compatible camera, monitoring device, or other supported hardware associated with your Account.

“Recorded Content” means video clips, images, audio, metadata, time stamps, device event logs, and related information uploaded to or processed by the Service from a Device.

“Service” means the Company’s cloud video storage service, including remote storage, access, playback, management, and related support functions for Device recordings.

“Subscription Term” means the purchased service period shown on the applicable order page, checkout page, subscription page, or service page.

“Third-Party Infrastructure Provider” means a third-party cloud hosting or storage provider used by the Company to deliver the Service, including AWS or Tencent Cloud, as identified on the applicable service page.

“Documentation” means user guides, FAQs, online help materials, and technical documentation published by the Company.

“Service Page” means the webpage or in-app page describing subscription plans, pricing, retention period, supported devices, and other service information.

“Order Page” means the checkout page or purchase confirmation page.

2. Service Description

2.1 Nature of the Service. The Service allows you to remotely store and access certain Device recordings in the cloud. When a compatible Device detects motion or another supported trigger event within its monitoring range, the Device may record content according to your settings and upload the resulting Recorded Content to the Service.

2.2 Retention Window and Overwrite. Recorded Content is stored for the retention period or service plan selected at purchase. Unless otherwise stated on the service page, once the applicable retention window is reached, older Recorded Content may be automatically overwritten or deleted in the ordinary course of system operation.

2.3 Service Availability by Product. The Service is only available for supported Devices, supported App versions, supported regions, and supported service plans identified by the Company from time to time.

2.4 Third-Party Hosting. The Service may be delivered using the Company's own systems together with infrastructure or storage services provided by one or more Third-Party Infrastructure Providers. The applicable provider may vary by service page, region, Device model, subscription plan, or other operational factors.

3. Eligibility and Account Requirements

3.1 You must maintain a valid registered Account to purchase and use the Service. The Service is linked to the Account used at the time of purchase or activation.

3.2 You are responsible for maintaining accurate Account information and for safeguarding your Account credentials. You are responsible for all activity under your Account unless caused by the Company's failure to implement reasonable security measures.

3.3 The Service is associated with the Account and the eligible Device or Devices shown in the App or service page. Transfer of a Device, change of Account, removal of a Device, or deactivation of an Account may affect or terminate your ability to use the Service with that Device.

4. Subscription, Billing, and Auto-Renewal

4.1 The Service is a paid subscription service unless expressly offered on a free-trial or promotional basis. Fees, billing intervals, retention periods, and plan details are shown on the applicable order page or service page.

4.2 The Service becomes effective when you complete the purchase process and payment is successfully processed, unless the order page states otherwise.

4.3 If you elect auto-renewal, your subscription will automatically renew for successive billing periods unless canceled before renewal in accordance with the cancellation instructions shown in the App, payment platform, or service page.

4.4 Where required by applicable law, the Company will provide renewal reminders or renewal disclosures in the manner required by law. You are responsible for keeping your billing contact details current.

4.5 The Company may change subscription prices, billing structures, or service plan terms upon prior notice to the extent required by applicable law. Unless otherwise stated, changes will apply at the start of your next renewal term, not during a prepaid active term.

4.6 Fees do not include taxes, duties, levies, or governmental assessments, all of which are your responsibility except taxes imposed on the Company's net income.

5. Refunds, Cancellation, and Plan Changes

5.1 Except as required by applicable law or expressly stated on the service page, once the Service has been successfully purchased or activated, the subscription is non-cancelable, non-returnable, non-exchangeable, and non-refundable.

5.2 You may cancel auto-renewal at any time before the next renewal date. If auto-renewal is canceled, your Service will continue until the end of the current paid Subscription Term and will not renew thereafter.

5.3 Cancellation of auto-renewal stops future billing only. It does not entitle you to a retroactive refund for the current term unless required by law.

6. Service Conditions and Technical Dependencies

6.1 Your use of the Service depends on Device functionality, App version, local network quality, internet connectivity, electrical power, storage and upload settings, and other technical factors outside the Company's reasonable control.

6.2 The Service requires adequate upload bandwidth to transmit recordings from the Device to the cloud. If multiple Devices operate on the same local network, bandwidth needs may increase accordingly. The Company does not guarantee successful upload, storage, or playback where network quality is poor or unstable.

6.3 The Company does not guarantee that all events, motion triggers, or recordings will be captured, uploaded, stored, transmitted, retained, or available for playback. Recorded Content may be delayed, degraded, unavailable, overwritten, corrupted, or lost due to network issues, Device failure, power loss, outages, maintenance, force majeure, or other causes beyond the Company's reasonable control.

6.4 The Service is offered as a convenience feature for remote video storage and access. It is not a guaranteed emergency response, alarm monitoring, law-enforcement dispatch, insurance, or safety-critical service.

7. Customer Use Obligations

You agree to use the Service only for lawful purposes; comply with all laws applicable to surveillance, recording, privacy, notice, consent, and data use in the jurisdiction where your Device is installed and operated; provide any required notices or obtain any required consents from individuals who may be recorded; and ensure that you have all rights necessary to upload, store, and process Recorded Content through the Service.

8. Prohibited Uses

You may not use the Service to violate any law or regulation; infringe privacy or third-party rights; store unlawful or harmful content; engage in unauthorized surveillance or recording; upload malware; reverse engineer the Service except where such restriction is prohibited by law; or use the Service in connection with life support, hazardous environments, or other uses where failure could lead to death, injury, or severe damage.

9. Recorded Content and Customer Rights

9.1 As between you and the Company, you retain your rights in Recorded Content that you lawfully submit to the Service.

9.2 You grant the Company and its subprocessors a non-exclusive, worldwide, limited license to host, encrypt, transmit, store, copy, reformat, display, and otherwise process Recorded Content solely as

necessary to provide, maintain, secure, support, improve, and enforce the Service, prevent abuse, and comply with law.

9.3 You are solely responsible for the legality, accuracy, quality, and use of Recorded Content, and for ensuring that the collection and storage of Recorded Content through the Service is lawful.

9.4 The Company generally does not monitor all Recorded Content. However, where permitted by law, the Company may investigate or review content, metadata, and usage where it reasonably believes doing so is necessary to protect the Service, comply with law, respond to complaints, or enforce this Agreement.

10. Privacy and Data Processing

10.1 The Company's collection, use, disclosure, and protection of personal information is described in the applicable Privacy Policy and any service-specific privacy notice.

10.2 To provide the Service, the Company and its Third-Party Infrastructure Providers may process Account information, Device identifiers and status information, Recorded Content, billing and transaction information, and support communications and diagnostics.

10.3 The Company may share Recorded Content and related personal information with hosting, storage, payment, support, analytics, security, communications, and other service providers as reasonably necessary to provide the Service.

10.4 Recorded Content and related data may be processed in the United States and other jurisdictions where the Company or its service providers operate, subject to applicable law.

10.5 The Company retains personal information and Recorded Content for as long as reasonably necessary to provide the Service, comply with legal obligations, resolve disputes, enforce agreements, and maintain required business and transaction records. Recorded Content stored under the subscription may be automatically deleted or overwritten based on the applicable retention period and may also be deleted after expiration or termination of the Service.

10.6 The Company may preserve, access, or disclose information where required to comply with law, court order, subpoena, governmental request, or to protect rights, property, safety, users, or the Service.

11. Third-Party Infrastructure and Integrations

11.1 The Company may use third-party infrastructure, software, and technology in delivering the Service. The Company is responsible for its contractual relationship with those providers, but not for separate relationships you may independently enter with them.

11.2 Certain integrated payment, app-store, notification, or cloud features may be subject to additional third-party terms.

11.3 Reference to AWS, Tencent Cloud, or another provider does not mean that such provider is a direct contracting party to this Agreement unless expressly stated otherwise.

12. Service Updates, Maintenance, and Changes

12.1 The Company may update, modify, patch, improve, or reconfigure the Service, App, or associated systems from time to time for security, legal, technical, or business reasons.

12.2 The Company may perform scheduled or emergency maintenance that temporarily affects availability of the Service. The Company will use commercially reasonable efforts to provide notice for scheduled maintenance where practicable.

12.3 The Company may add, remove, or modify Service features, supported regions, supported Devices, subscription plans, or infrastructure arrangements. If the Company fully discontinues a paid Service during an active paid term for reasons other than your breach, the Company may, at its option, provide a comparable replacement, a prorated refund for the unused remainder, or continued access through the end of the active paid term where feasible.

13. Suspension and Termination

13.1 The Company may suspend all or part of the Service immediately if your use violates this Agreement or applicable law; poses a security, legal, or operational risk; payment is overdue; your Account or Device is compromised; or suspension is required by law or by a service provider necessary to operate the Service.

13.2 You may stop using the Service at any time. Stopping use does not automatically cancel subscription charges already incurred or entitle you to a refund except as required by law.

13.3 The Company may terminate this Agreement or your access to the Service if you materially breach this Agreement, fail to cure a curable breach after notice, repeatedly violate this Agreement, fail to pay fees, or if continued service is unlawful or no longer commercially feasible.

13.4 Upon termination or expiration, your right to access the Service ends, Recorded Content may no longer be accessible, and the Company may delete Recorded Content after a reasonable post-termination retrieval window, if any, described on the service page or in the Documentation.

14. Intellectual Property

The Service, App, Documentation, software, interfaces, workflows, and all related technology are owned by the Company or its licensors and are protected by intellectual property laws. Except for the limited right to use the Service during the Subscription Term, no rights are granted to you by implication, estoppel, or otherwise.

15. Confidentiality

If either Party receives non-public confidential information from the other in connection with this Agreement, the receiving Party must use it only for purposes of this Agreement, protect it with reasonable care, and not disclose it except to those with a need to know and under binding confidentiality obligations, or as required by law.

16. Limited Warranty

The Company warrants that it will provide the Service in a professional and workmanlike manner using commercially reasonable care consistent with general industry practice. Your sole and exclusive remedy, and the Company's sole liability, for breach of this warranty will be for the Company to use commercially reasonable efforts to correct the non-conforming Service or, if correction is not commercially feasible, terminate the affected portion of the Service and refund any prepaid unused fees for that affected portion.

17. Disclaimers

EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE COMPANY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, QUIET ENJOYMENT, ACCURACY, OR THAT THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE.

WITHOUT LIMITING THE FOREGOING, THE COMPANY DOES NOT GUARANTEE THAT EVERY MOTION EVENT OR OTHER EVENT WILL BE DETECTED, RECORDED, UPLOADED, OR STORED; THAT RECORDED CONTENT WILL ALWAYS BE AVAILABLE, ACCURATE, TIMELY, OR RETAINED FOR ANY PARTICULAR PERIOD OTHER THAN THE APPLICABLE PLAN DESCRIPTION; OR THAT THE SERVICE WILL PREVENT CRIME, LOSS, PERSONAL INJURY, OR PROPERTY DAMAGE.

18. Indemnification

You will defend, indemnify, and hold harmless the Company, its affiliates, officers, directors, employees, contractors, and service providers from and against any third-party claims, liabilities, damages, judgments, settlements, fines, penalties, costs, and expenses, including reasonable attorneys' fees, arising out of or related to your Recorded Content, your use of the Service, your violation of this Agreement, your violation of law, or your infringement or violation of third-party rights.

19. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE COMPANY SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS OPPORTUNITY, GOODWILL, USE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

THE COMPANY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE SERVICE SHALL NOT EXCEED THE GREATER OF THE AMOUNT YOU PAID FOR THE SERVICE GIVING RISE TO THE CLAIM DURING THE TWELVE (12) MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM OR USD \$100. Nothing in this Agreement excludes liability that cannot be excluded under applicable law.

20. Force Majeure

The Company is not liable for delay, interruption, failure, or loss caused by events beyond its reasonable control, including natural disasters, power failures, internet or telecommunications outages, cyberattacks, labor disputes, epidemics, governmental actions, sanctions, changes in law, or failures of third-party infrastructure, cloud, or utility providers.

21. Governing Law and Jurisdiction

This Agreement and any dispute, claim, or controversy arising out of or relating to this Agreement or the Service shall be governed by and construed in accordance with the laws of the State of California, United States of America, without regard to its conflict of laws principles.

The parties agree that any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in Santa Clara County, California, and each party irrevocably submits to the personal jurisdiction and venue of such courts. The United Nations Convention on Contracts for the International Sale of Goods does not apply to this Agreement.

22. Changes to This Agreement

The Company may update this Agreement from time to time for legal, regulatory, security, business, or operational reasons. Where required by law, the Company will provide notice of material changes. Unless otherwise required by law, the updated Agreement becomes effective on the date stated in the notice or posting. Continued use of the Service after the effective date constitutes acceptance of the updated Agreement.

23. Notices and Contact Information

You may contact the Company regarding this Agreement, support, or legal notices using the contact details identified in the App, service page, or official website.

Company Notice Address: 3COM USA INC; 2200 Laurelwood Rd, Santa Clara, CA 95054;
support@3comusa.com; privacy@3comusa.com

24. Miscellaneous

This Agreement, together with any order page, service plan description, Privacy Policy, and other documents expressly incorporated by reference, forms the entire agreement between you and the Company regarding the Service.

If any provision of this Agreement is held unenforceable, the remaining provisions will remain in effect. Failure to enforce any provision is not a waiver of future enforcement. You may not assign this Agreement without the Company's prior written consent. The Company may assign this Agreement in connection with a merger, acquisition, reorganization, or sale of assets. Electronic acceptance of this Agreement is valid and binding to the same extent as a handwritten signature.

Signature Block

Company	Customer
By: _____	By: _____
Name / Title / Date: _____	Name / Title / Date: _____